

The M.P. Hindu Marriage Registration Rules, 1984

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State of Madhya Pradesh - Act

The M.P. Hindu Marriage Registration Rules, 1984

MADHYA PRADESH

India

The M.P. Hindu Marriage Registration Rules, 1984

RULE THE-M-P-HINDU-MARRIAGE-REGISTRATION-RULES-1984 of 1984

Published on 15 October 1984

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The M.P. Hindu Marriage Registration Rules, 1984

Published vide Notification No. 17(E)-102-75-B-21, dated 15-10-1984, Madhya Pradesh Rajpatra, Part 4 (Ga), dated 11-1-1985

Notification No. 17(E)-102-75-B-XXI, dated 15-10-1984. - In exercise of the powers conferred by sub-section (1) of Section 8 of the Hindu Marriage Act, 1955 (No. XXV of 1955), the State Government hereby makes the following rules for the registration of Hindu marriages, namely :-

1.

These rules may be called the Madhya Pradesh Hindu Marriage Registration Rules, 1984.

2.

In these rules, unless the context otherwise requires :-

(a)

"Act" means the Hindu Marriage Act, 1955 (No. XXV of 1955);

(b)

"Form" means a form appended to these rules;

(c)

"Marriage" means the Hindu marriage solemnised in accordance with the provisions of the Act;

(d)

"Registrar" means the Collector of the district in which the marriage is solemnised and in the event of the office of Collector becoming vacant or in his absence for whatever reason, any officer who succeeds temporarily to the executive administration of the district whether of the rank of Collector or not;

(e)

"Section" means a section of the Act.

3.

(1)

Every Registrar shall maintain the Hindu Marriage Register which shall be in the form of a paste book, consisting of blank butts serially numbered.

(2)

The Registrar shall certify under his signature, on the title page of every blank register maintained under sub-rule (1) of the number of pages actually contained in such register and shall also note the date on which the register was opened by him.

(3)

The register maintained under sub-rule (1) shall be numbered serially beginning with the figures "1".

4.

(1)

A party to a Hindu marriage which has been solemnised may apply to the Registrar in Form 'A' for registration of marriage.

(2)

Such application shall also bear the signature of the officiating priest; if any.

Explanation. - For the purposes of this rule, registration of marriage is not obligatory and non-registration will not invalidate the marriage in any manner.

5.

A fee of rupees five for registration of marriage shall be credited to the Government under the head of account..... "065-Other Administrative Service-A Administration of Justice a-Services and Service Fees-iv-Miscellaneous fees" in Government treasury through a challan and a copy of challan shall be attached to the application.

6.

(1)

When an application for registration of a Hindu Marriage is presented before the Registrar by a party to the marriage, the Registrar shall subject to the provisions of Rule 7 and except when both the parties to the marriage appear before him personally and are identified to his satisfaction, give notice of the application in Form 'B' to the other party to the marriage by registered post and make such enquiry of a summary character as he thinks fit regarding the marriage.

(2)

On being satisfied about the fact of marriage, the Registrar shall register the marriage and the application, in a register maintained in Form C and shall file the application in the Hindu Marriage Register by pasting it on the first blank but available in his current register. The application shall be endorsed by the Registrar with the following endorsement on the reverse thereof :-

"The application alongwith a copy of challan was received by me..... 19..... and the application is filed at serial No.... of..... 19..... on page..... of volume..... of the Register of Hindu Marriage, maintained under the Hindu Marriage Act, 1955 (No. XXV of 1955).

Date..... 19.....

.....Registrar of Hindu Marriages"

7.

(1)

If any application made to the Registrar under Rule 4 is not accompanied by a copy of challan or is defective in any respect, the Registrar shall refuse to entertain the application unless the applicant deposit the said fee through challan and produces a copy of it for proof of remedies the defect, as the case may be, within such time as may be specified by him.

(2)

If the Registrar to whom such application is made, has no jurisdiction to entertain the same, he shall send the application to the Registrar having such jurisdiction and inform the persons making the application accordingly.

(3)

If the notice referred to in sub-rule (1) of Rule 6 cannot be served or if the Registrar is not satisfied about the identity of the parties or about the fact of marriage, he shall by an order in writing, refuse to register the marriage.

8.

(1)

Any person aggrieved by the order refusing to register a marriage may, within thirty days from the date of the order, appeal to the Commissioner concerned.

(2)

The appellate authority shall peruse the memorandum of appeal and register the same and fix a date for hearing of appeal of which notice shall be issued to the appellant and to the opposite party as also to the officiating priest and intimation of lodgement of appeal shall also be sent in writing to the Registrar alongwith a requisition for concerned record.

(3)

On the date fixed for hearing of the appeal or on such other date to which the hearing may be adjourned, the appellate authority shall peruse the record and afford an opportunity to the parties and to the officiating priest of being heard in person or through their legal practitioner. The appellate authority may in his discretion make such further enquiry and take such further evidence as he may deem fit and thereafter decide the appeal. A true copy of order in appeal shall be sent to the Registrar alongwith the record of the case for information and compliance.

(4)

If the appellate authority directs making of entry in the Hindu Marriage Register, the Registrar shall make the necessary entry. The Registrar shall in all such cases, note the operative portion of the appellate order in the Hindu Marriage Register.

(5)

True copies of order passed in appeal shall be furnished to any person applying for the same on payment of rupees five as minimum copying charges.

9.

(1)

Blank forms of application shall, on request, be supplied by the Registrar free of charge to the parties to a marriage.

(2)

The Registrar may also supply free of charge to any priest such number of blank forms, as he may deem reasonable provided that such priest undertakes to render an account of the forms, when he requests for further supply of such forms.

10.

Certified copy of extracts from the register in respect of marriage shall be furnished to any person applying for the same on payment of rupees five as minimum copying charges.

11.

(1)

The Registrar or the Commissioner, as the case may be, shall pass the receipt for the amount received by him as copying charges in Form 'D'.

(2)

The amount so received shall be credited to the Government under the head of account "065-Other Administrative Services-Administration of justice-C-other receipts-iv-miscellaneous".

12.

The Registrar may delegate all or any of its powers under these rules to the Additional Collector.

13.

The Madhya Pradesh Hindu Marriage Registration Rules, 1965, are hereby repealed :

Provided that anything done or any action taken under the rules so repealed shall be deemed to have been done or taken under the corresponding provisions of these rules.

Form A

[See Rule 4(1)]

To

The Registrar of Hindu Marriages

Place.....

Subject: Application for entry of marriage in Hindu Marriage Register

Sir,

I.....son/daughter of..... age..... occupation (if any)..... address..... hereby apply for entering the fact of my marriage in the Hindu Marriage Register maintained in your office and submit the following particulars, namely :-

(1)

Date of marriage,

(2)

Place of marriage (with sufficient particulars to locate the place)

(3)

(a)

Full name of the bridegroom.

(b)

Full name of his father.

(c)

Date of birth and age,

(d)

Usual place of residence.

(e)

Address.

(f)

Status of the bridegroom at the time of marriage whether unmarried/widow/Divorcee.

(4)

(a)

Full name of the bride.

(b)

Full name of her father.

(c)

Date of birth and age.

(d)

Usual place of residence.

(e)

Address.

(f)

Status of bride at the time of marriage whether unmarried/widow /Divorcee.

(5)

(a)

Full name of the officiating priest (in case of marriage is performed by a priest).

(b)

His age.

(c)

Usual place of residence.

(d)

Address.

(e)

Signature of the officiating priest with date.

(2)

The requisite fee of Rs. 5 (Five rupees) has been credited into Government Treasury at (place).....on.....copy of related challan is annexed hereto.

.....Signature of Applicant/Applicants.

Verification

I,.....do hereby verify that the particulars of the marriage given above are true to the best of my knowledge and are believed by me to be true and that no part of the application is false.

Signed and verified this..... day of..... (month and year) at place

.....Signature of applicant/applicants.

Form B

Form of notice

[See Rule 6(1)]

Shri.....

(mention full address)

Whereas, an application (copy enclosed) for registration of marriage has been presented to the undersigned under sub-rule (1) of Rule 4 of the Madhya Pradesh Hindu Marriage Registration Rules, 1984, by..... son/daughter of resident of..... Tahsil..... District..... and the said application had been fixed for..... for consideration.

You are hereby noticed to intimate to the undersigned within..... days of the receipt of this notice whether you admit the correctness of the particulars mentioned in the aforesaid application and whether you have any objection to the fact of the marriage being entered in the Hindu Marriage Register maintained, under Section 8 of the Hindu Marriage Act, 1955 (No XXV of 1955).

If no objection is received within the aforesaid period it will be presumed that you have no objection to the registration of the marriage. You may appear in person on.....failing which proceedings are liable to be decided in your absence.

Date.....

.....Registrar of Marriages.

Form C

[See Rule 6 (2)]

Serial No.

Date of receipt of application

Name and address of application

Number and date of Challan evidencing payment of fee for registration

(1)

(2)

(3)

(4)

Full name and address of bridegroom

Status of bridegroom whether unmarried, widower or a divorcee

Age and date of birth of bridegroom

Full name and address of bride

(5)

(6)

(7)

(8)

Status of bride whether unmarried, widow or a divorcee

Age and date of birth of bride

Name and full address of priest in case marriage
is performed by priest

Date of marriage

(9)

(10)

(11)

(12)

Place of marriage village/ town city/ tehsil and
district

Date of order of Registrar for registration of
marriage

Number of appeal if filed and rate of decision of
appeal

Co-operative part of direction in appeal

Remarks

(13)

(14)

(15)

(16)

(17)

.....Signature of Registrar

Form D

Receipt for copying charges under Rule 11 (1) of the Madhya Pradesh Hindu Marriage Registration Rules, 1984

Counter foil

Receipt

Serial No..... Date.....

Serial No..... date.....

Received from Shri/Smt.....

Received from Shri/Smt.....

Rs..... (in words)..... as copying charges.

Rs..... (in words)..... as copying charges.

Signature

Signature

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